

June 2023

FOR BIS USE ONLY

GUIDELINES FOR DEALING WITH COMPLAINTS RELATED TO QUALITY OF BIS CERTIFIED PRODUCTS



भारतीय मानक ब्यूरो

BUREAU OF INDIAN STANDARDS

TABLE OF CONTENTS

SI. NO.	TITLE	PAGE NO.
Chapter I- Introduction & Scope		
1.	Introduction	2
2.	Scope	2
Chapter II- Definitions, Roles & Responsibilities of CMED		
3.	Complaint	4
4.	Categories of Complainants	4
5.	Roles and Responsibilities of Complaint Management & Enforcement Department	4-5
Chapter III- Dealing with Complaints		
6.	Process Flow-charts for Handling of Complaints	7-8
7.	Actions on Receipt of Complaints	9-10
8.	Investigation of Complaints	10-13
9.	Actions to be taken when complaint is not established	13
10.	Actions to be taken when complaint is established	13-14
11.	Redressal Mechanism and Closure of Complaint	14
12.	Data Analytics and Corporate Investigations	15
13.	Time-norms for Complaint Handling	15
Chapter IV- Annexures and Proformae		
Annex-1	Timelines for Dealing with Product Quality Complaints on Standards Promotion Portal	17-18
Proforma I	Report of investigation of product quality complaint at complainant end	19-20
Proforma II	Report of investigation of product quality complaint at licensee end	21-22
Proforma III	Report of investigation of complaint at complainant end (For Hallmarking related complaints)	23-24
Proforma IV	Report of investigation of complaint against Recognized A&H Centre	25-27
Proforma V	Report of investigation of complaint against Registered Jeweller	28-29
Proforma VI	Proforma for closure of product quality complaints	30-31

Chapter I

Introduction & Scope

1. INTRODUCTION

1.1 Bureau of Indian Standards (The Bureau), the National Standards Body of India, is engaged in the formulation of Indian Standards in various fields. The Bureau is also operating various Conformity Assessment Schemes such as Product Certification Schemes which includes household and industrial products, Hallmarking Scheme for gold/silver jewellery/artefacts, Compulsory Registration Scheme for electronic goods etc.

1.2 Despite utmost care and strict supervision by the Bureau in providing above services, there is a possibility of consumers being not happy about the quality of BIS certified products. In such cases, they can always lodge a complaint in the nearest BIS Office or through Standards Promotion Portal or BIS CARE App. The Bureau would not only help in timely redressal of the complaint but also ensure that suitable remedial and corrective action is taken so as to reduce recurrence of quality related complaints. Necessary actions are taken to ensure that corrective measures are taken by the licensees so that other consumers are not put to inconvenience. Such complaints are also treated as feedback on the performance of licensees.

1.3 Relevant provisions of IS 16677:2017 - Quality Management- Customer Satisfaction- Requirements for Complaint Handling in Organization, as appropriate to scope of this document, have been incorporated while drafting these guidelines. Responsibilities and authorities for handling of complaints have been covered. Existence of a suitably staffed dedicated department for coordination and monitoring complaints related matters shows seriousness of management to redress explicit or implied grievances from various quarters. The document covers acknowledgement of complaints, various procedures, formats, time norms, investigation, corrective actions, redressal and regular analysis of complaints.

2. SCOPE

2.1 This document lays down guidelines for dealing with complaints related to quality (performance or safety, as applicable) of BIS certified products under Scheme-I (including FMCS), Scheme-II and Scheme-IV of BIS (Conformity Assessment) Regulations, 2018, as applicable. Guidelines for dealing with complaints related to purity of Hallmarked articles are also covered under this document.

2.2 Complaints related to unauthorized use of BIS Standard Mark(s), Violation of Quality Control Orders, false and misleading claims shall be dealt in accordance with SOP and Guidelines for Enforcement Activity.

2.3 The complaints relating to other Sections (for example, Grant of License/ Certificate of Conformity, marking non-conforming products, non-compliance with Scheme of Inspection & Testing (SIT) or any other conditions of the licence) pertaining to the specific Conformity Assessment Scheme, shall be dealt as a part of the monitoring under the guidelines issued by BIS for relevant Conformity Assessment Scheme from time to time.

Chapter II

Definitions, Roles & Responsibilities of Complaint Management & Enforcement Department (CMED)

3. COMPLAINT

3.1 A complaint is an expression of dissatisfaction resulting from the use of a product or service. With regard to activities of Bureau of Indian Standards (The Bureau), this definition is limited to dissatisfaction with the quality of products certified by the Bureau.

3.2 Definition of complaint as per IS/ISO 10002:2018 and IS 16677:2017 are also reproduced as below:

IS/ISO 10002:2018:

“Expression of dissatisfaction made to an organisation, related to its product or service, or the complaints-handling process itself, where a response or resolution is explicitly or implicitly expected”

IS 16677:2017:

“Expression of dissatisfaction made to an organisation related to its products and services where a response or resolution is explicitly or implicitly expected”

4. CATEGORIES OF COMPLAINANTS

4.1 Although a complaint can be lodged by any individual on BIS portal. The most common types of complainants include following-

- (i) Individual Consumer of Goods & Services
- (ii) Organized Buyer (consumer) of Goods & Services e.g., Govt. / State Govt. / PSUs procurement Dept.
- (iii) Consumer Groups, Voluntary Consumer Organizations, NGOs, Self Help Groups making complaints themselves or on behalf of 1 above.
- (iv) Govt. Bodies
- (v) BIS Licensees/Applicants
- (vi) Service Providers to BIS
- (vii) Industry (Manufacturer of Goods & Services)
- (viii) Industry Associations and similar bodies
- (ix) Others (Number to be assigned in numeric order for categories not covered under (i) to (viii))

(nn)

5. ROLES AND RESPONSIBILITIES OF COMPLAINT MANAGEMENT AND ENFORCEMENT DEPARTMENT (CMED)

5.1 At the Headquarters of the Bureau, Complaint Management & Enforcement Department (CMED) is the nodal department for enforcement activity as conducted by ROs/BOs and for handling all types of complaints other than those pertaining to vigilance matters, received through all modes such as official website of the Bureau, CPGRAMS, INGRAM, BIS CARE App, Standards Promotion Portal, email, hard-copy etc. received at all ROs/BOs, Departments of the Bureau at the HQ and NITS.

5.2 The department is responsible for coordinating with ROs/BOs, Departments at HQs and NITS for getting investigations of all complaints done, monitoring their progress and reporting to competent authority.

5.3 The department may also carry out investigations of complaints, as specifically assigned by the competent authority.

5.4 The department is responsible to formulate policy on complaints and enforcement related matters and to guide ROs/BOs with regards to the same.

5.5 The department reports to DDG (Policy, Research & Training).

Chapter III

Dealing with Complaints

6. PROCESS FLOW-CHART FOR HANDLING OF COMPLAINTS

Flow charts provides a quick reference for the actions which are to be taken while dealing with different types of complaints.

6.1 Figure-I prescribes a schematic process flow-chart for course of action to be taken while dealing with complaints related to quality of products covered under Scheme-I, Scheme-II and Scheme-IV of BIS (Conformity Assessment) Regulations, 2018 as amended from time to time.

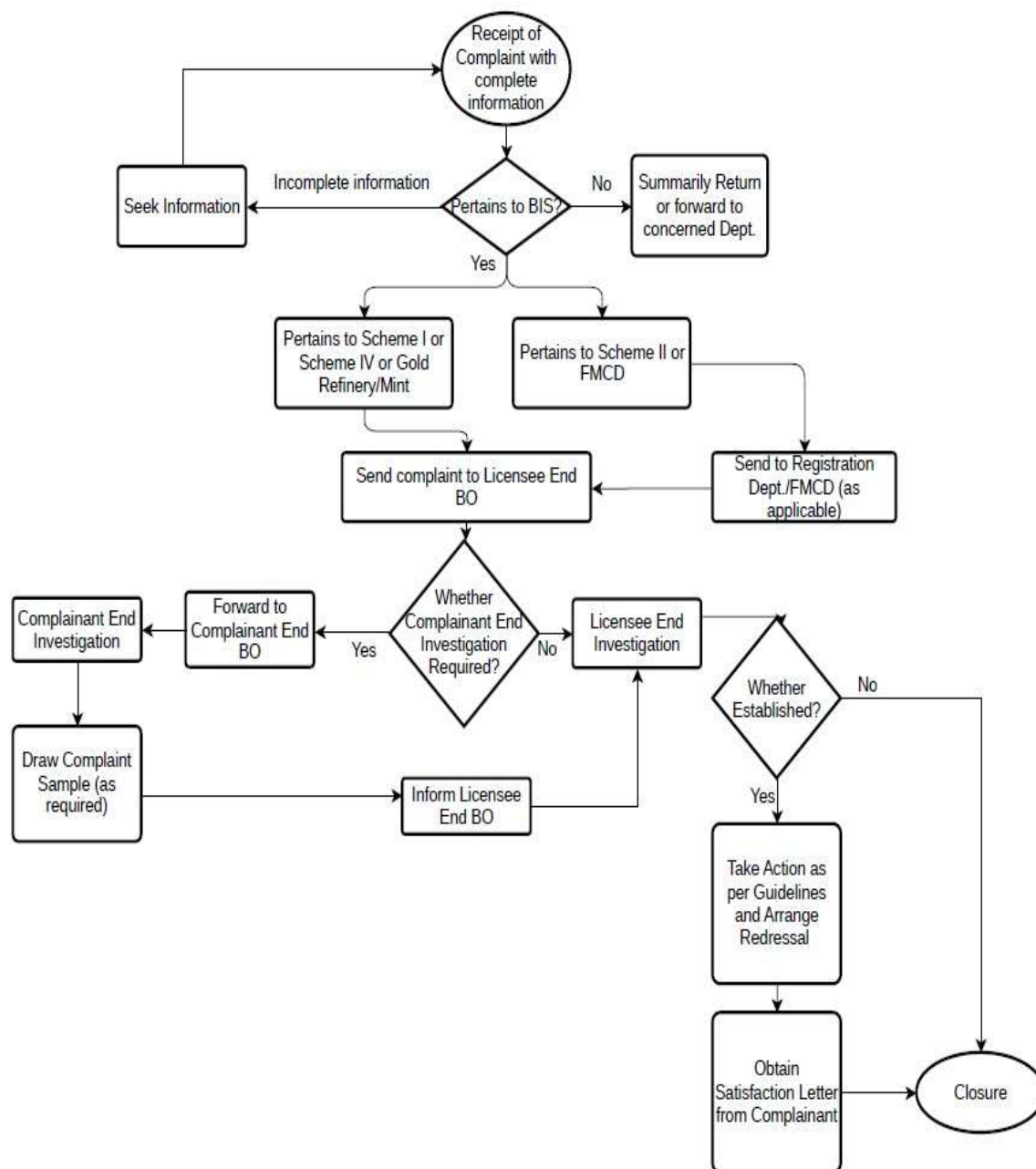


Figure-I: Process flow-chart for complaints pertaining to Scheme-I, Scheme-II and Scheme-IV (Including Refinery/Mint)

6.2 Similarly, for complaints related to Hallmarking, schematic flow-chart prescribed under Figure-II may be referred.

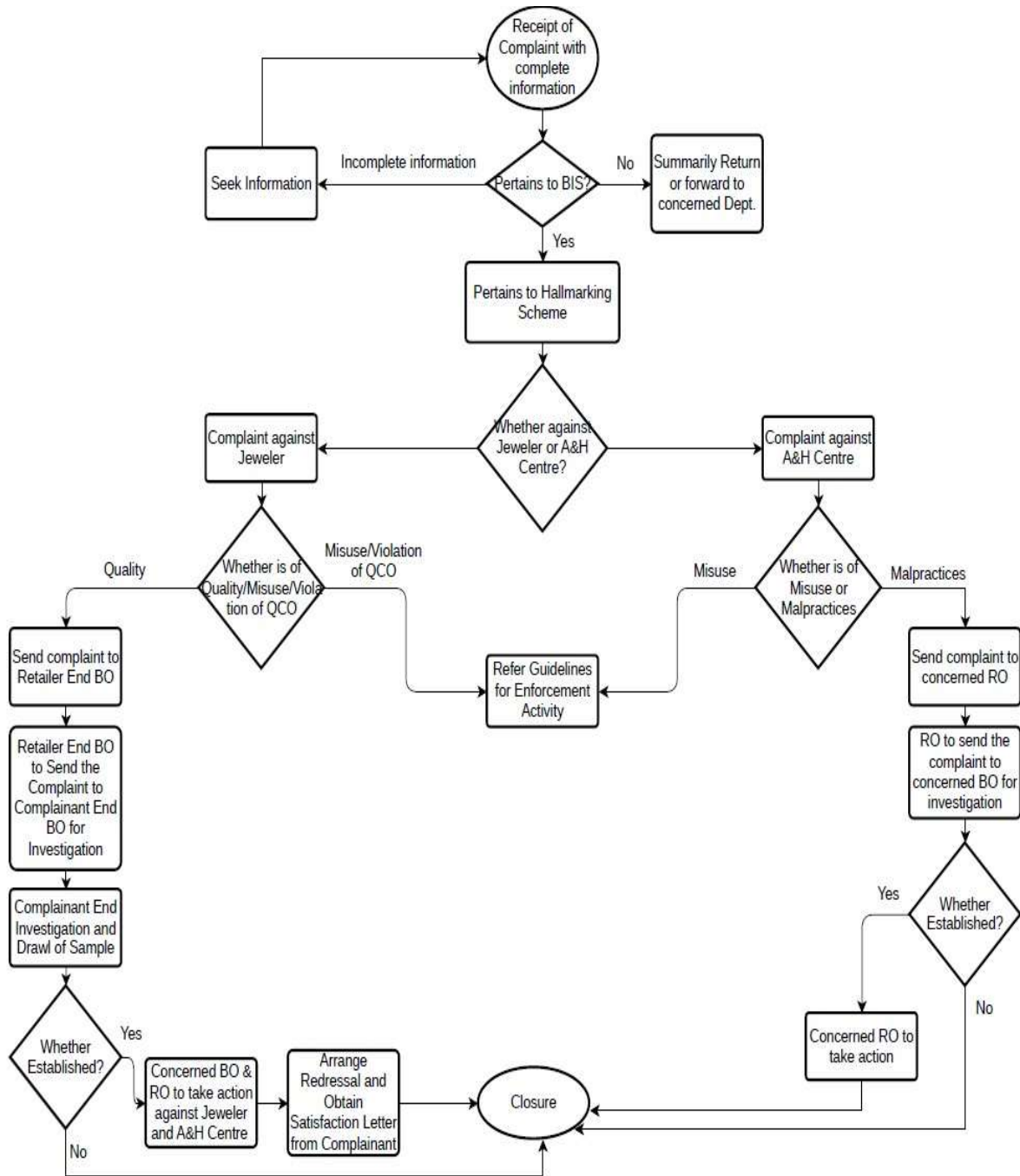


Figure-II: Process flow-chart for complaints related to Hallmarking

6.3 It may be noted that flow-charts given under Figure-I and Figure-II are for guidance purpose. Action on complaints shall be taken on merit in accordance with BIS Act 2016, Rules and Regulations, as amended from time to time.

7. ACTIONS ON RECEIPT OF COMPLAINTS

7.1 On receipt of every complaint, nodal department at HQ shall take following actions:

- (a) It should be ascertained whether the communication received through any of the modes is actually a complaint or not. In case, the same is not a complaint or not pertaining to activities of BIS, a suitable reply shall be given to the sender with a guidance to approach concerned Ministry/Department/Govt. Body for redressal of his/her grievance, as applicable.
- (b) For communications received through Standards Promotion Portal which are not qualifying as a 'complaint', the same shall be summarily returned with remarks as applicable.
- (c) When it is ascertained that communication received on the portal is a complaint having all requisite details, the same shall be forwarded to concerned RO/BO/Dept. with approval of Head of the Department.
- (d) In the event of receipt of complaint through other modes such as emails/letters etc., the same shall be acknowledged and shall be entered in the portal with all details received along with the complaint and shall be forwarded to concerned ROs/BOs/Dept. with approval of Head of the Department.
- (e) If additional information is required to process any complaint further, the same may be obtained using communication facility provided in the portal. In case the requisite information is not provided within 7 days by the complainant, the complaint may be summarily returned providing appropriate remarks, as applicable.

7.2 For complaints received at ROs/BOs/Labs/Dept. of HQ/NITS, following actions shall be taken:

- (a) Same action as under 7.1(a) above shall be taken for the complaints received through all modes except through Complaints Portal.
- (b) In the event of receipt of complaint through other modes such as emails/letters etc., the same shall be acknowledged and shall be entered in the portal with all details received along with the complaint.
- (c) An officer at CMED shall process the complaint uploaded on Portal as per 7.1(c) above.

7.3 On receipt of complaints/grievances through CPGRAMS/INGRAM, nodal department at HQ/ ROs/BOs shall take following actions-

- (a) For grievance received at HQ, it shall be forwarded to the concerned department. The proforma for providing response shall also be provided to the concerned department with an advice to provide the suitable response with due approval from activity head within 14 days.
- (b) The response received shall be submitted on the relevant portal with due approval from Head of Department by next working day.

(c) In case it is necessary to conduct investigation w.r.t. the facts stated in the grievance, the grievance shall be forwarded to the concerned ROs/BOs/Labs/Dept. of HQ/NITS for investigation.

(d) In situations as under (c) above, the original grievance in CPGRAMS/INGRAM portal may be disposed-off with approval from Head of Department, with appropriate closing remarks as applicable and the grievance shall be registered in complaints portal for further processing of the complaint.

7.4 Anonymous/Pseudonymous complaints relating to BIS Certified Products may be treated as a feedback with regard to performance of the licensee. Facts stated in such complaints shall be verified during factory/market surveillance by the concerned BO. However, decision with regard to investigation of such complaints should be made based upon the degree of evidence available on record.

7.5 Complaints against officials of the Bureau should be referred to the Director General, BIS for necessary directions.

7.6 If a decision on further processing of following types of complaint is taken, due justification shall be recorded by Head of the Department:

(a) If it is received after a long period of time since the deficiency in the product is observed. This period may normally be taken as 3 months for common consumers. For organized buyers, the same may be taken as 1 year.

(b) If it is lodged by a person who is not the actual consignee/consumer of the product/service.

(c) If it is lodged repeatedly by the same complainant, provided necessary action, if any, had already been taken on the original complaint.

7.7 Grounds for returning a complaint shall be appropriately communicated to the complainant.

8. INVESTIGATION OF COMPLAINTS

8.1 General Principles for Complaint Investigation

8.1.1 Investigation of complaint received from Govt. Depts. / Organized Buyers shall be accorded priority and all steps shall be taken to logically conclude the complaint within specified time-norms.

8.1.2 Head of the Department should also ensure that resources of the department including manpower, are judiciously utilized in investigation of complaints.

8.1.3 Before proceeding for complaint investigation, the Certification Officer should familiarize himself/herself with the nature of complaint, facts stated therein, applicability of relevant Indian Standard, certification guidelines etc.

8.1.4 Complainant end investigation should generally precede licensee end investigation so that maximum information can be gathered before proceeding for licensee end investigation.

8.1.5 Complainant end BO shall make all efforts to contact complainant to gather as much information as possible.

8.1.6 Report of investigation at the end of complainant and licensee shall necessarily be submitted in the prescribed proformae (see list of Annexures) even if the licensee end investigation is clubbed with any other visit.

8.1.7 The investigation of a complaint shall consist of one or more of the following actions:

(a) Establishment of genuineness of complaint by physical verification of the product under complaint and noting down the marking details on the product and/or its packing/container. Verification may include assessment of parameters such as conditions of use, method of installation and storage, manner of handling of product etc. Compliance with user manual supplied by the manufacturer with regard to use/installation/storage/handling etc. of the product should also be verified. Any other observations relevant to medical treatment/first-aid, if taken by the complainant shall also be reported.

(b) Ascertaining details of the complaint material such as, quantity under complaint and that held in stock, name of manufacturer, source of purchase, date of purchase, copy of payment receipt, installation etc. Copies of relevant documents, as available, shall also be obtained from the complainant.

(c) If the BIS certified material has been accepted after inspection by another Agency, full particulars about such inspections may be obtained.

(d) Drawl of sample as per the following procedure:

- (i) Draw sample from the stock under complaint, if available.
- (ii) If stocks are inadequate, sample may be drawn from the same batch/control unit from the source from where the complaint material was purchased.
- (iii) In case the complaint batch sample is not available at source of purchase and instead material pertaining to nearby lot/batch/control unit is available, a market sample shall be drawn for review of licensee's performance only. Decision on the particular complaint is not to be taken on the basis of such market sample.

(e) Examination of records of the lot/batch/control unit of the complaint material as maintained by the licensee.

8.2 Complaints specific to Scheme II (Compulsory Registration Scheme) and FMCS

8.2.1 General procedure for handling of complaint remains the same as in 8.1.

8.2.2 Registration Department shall act as licensee end BO for complaints related to electronic goods covered under Scheme II. For complaints related to quality (performance or safety, as applicable) of product manufactured by domestic manufacturers, the complaint shall be forwarded to the concerned RO/BO for investigation.

8.2.3 If the manufacturer is situated overseas, it may not always be feasible to arrange for licensee end investigation. In such situations, Registration Department shall decide further course of action to be taken based upon the findings of complainant end investigation, so as to lead the complaint to a logical conclusion. If required, Video Conferencing may be arranged for firms situated overseas and the proceedings are to be recorded for reference and records.

8.2.4 Similarly, FMCD shall act as licensee end BO for the complaints related to quality of products manufactured by licensees situated overseas. If a complaint is required to be investigated at the end of such licensee, FMCD may arrange licensee end investigation through discussions with Authorised Indian Representatives of the licensee at BIS HQs or directly with the firm through Video Conferencing and the proceedings are to be recorded for reference and records.

8.3 Complaints specific to Hallmarking of Gold/Silver Jewellery/Artefacts

8.3.1 General procedure for handling of complaint remains the same as in 8.1.

8.3.2 Hallmarking Scheme operated by The Bureau involves different parties viz. Consumer, Jeweller, Assaying & Hallmarking Centre and the Bureau. Hence, complaints related to Hallmarking shall be investigated considering all aspects and role of all parties involved.

8.3.3 BO under whose jurisdiction the registered jeweller (retailer i.e. first point of sale) falls shall be responsible for bringing the complaint to a logical conclusion. If required, complaint may be forwarded to complainant end BO for investigation.

8.3.4 In complaints related to purity of Hallmarked jewellery/articles, consumer may not be mentally prepared to get the articles tested by assaying method and still continue to be aggrieved. Such cases are to be handled with an approach to guide the complainant regarding compensation procedure and importance of assaying process to detect actual purity of gold in order to establish malpractices by the jeweller/A&H Centre.

8.3.5 For all complaints related to operation of registration by a registered jeweller, the concerned BO shall act in accordance with the guidelines issued by Hallmarking Department from time to time.

8.4 Investigation in case of expired/cancelled licenses

8.4.1 In situations related to Scheme-I (ISI Mark Scheme) where license cease to exist, investigation may be carried including testing of complaint sample (if required) and complainant may be advised to approach appropriate forum for redressal of his/her grievance, providing a copy of investigation report and test report(s), if any.

9. ACTIONS TO BE TAKEN WHEN COMPLAINT IS NOT ESTABLISHED

9.1 Investigation carried out by concerned BO at the end of complainant and licensee shall necessarily conclude whether complaint with respect to the facts stated by the complainant is established or not.

9.2 In case complaint is found to be not genuine, the complainant shall be informed accordingly and case may be put up for closure to the concerned Competent Authority.

9.3 Decision of competent authority on closure of complaint shall be communicated to CMED with all relevant details such as communication with complainant, investigation reports etc., for records.

10. ACTIONS TO BE TAKEN WHEN COMPLAINT IS ESTABLISHED

10.1 Depending upon the gravity of the findings in the investigation of a complaint, appropriate action shall be taken against the licensee.

10.2 In case of food products or products under mandatory certification (and for any other identified product where stricter norms are to be applied), suspension may be imposed if complaint sample is found non-conforming.

10.3 Suspension should also be imposed on the licensee if the complaint sample fails in independent testing or visual examination or factory testing, as applicable. If, however, the concerned RO/BO feels that there is sufficient justification for not imposing suspension, such justification should be recorded on the closure proforma submitted to concerned DDGR/Activity Head.

10.4 In case suspension has been imposed then it shall be ensured through a visit that licensee has taken all the necessary corrective actions to prevent such lapses in the future.

10.5 Cancellation of the licence may be considered depending upon the seriousness of the complaint. In case it is established that a licensee has intentionally produced substandard product, action as per guidelines issued by CMD-I may be initiated.

10.6 In case, the matter relating to the complaint has been referred to a Court of Law or to a Consumer Redressal Forum (i.e., has become sub-judice) or has been referred for arbitration, the complaint may be processed for closure.

10.7 If necessary, Director General of the Bureau of Indian Standards may re-open any complaint which has been closed for actions as considered necessary. Efforts shall be made to complete all actions on the complaints as per the timelines given under **Annex-1**. Where testing of complaint sample is involved, efforts shall be made by the BO who has drawn the sample under complaint to get the same tested on priority and within a maximum period of one month. In case the complaint sample takes more than one month of testing, approval of concerned DDGR may be taken in such cases.

Note: Unless otherwise required for legal purposes, copy of Test Report of complaint sample shall not be given to the complainant. In case, it is insisted upon, then only the findings should be conveyed.

11. REDRESSAL MECHANISM AND CLOSURE OF COMPLAINT

11.1 In case the complaint is established by way of testing of the complaint sample or even by testing/observation during visit to the complainant, steps shall be taken to advise the licensee to arrange redressal of the complaint within 7 days, by way of replacement/repairs depending upon the product under complaint.

11.2 If redressal is provided by the way of repair then licensee shall be advised to repair total quantity of material under complaint.

11.3 In the event of decision of redressal by the way of replacement, it may not always be possible for the licensee to provide replacement of total quantity of material under complaint due to situations such as in-sufficient stock, actions taken by the Bureau such as suspension or cancellation of licence. In such situations, licensee may be advised to replace the material under complaint with the quantity available in its stock.

11.4 In case it is not possible for the licensee to provide replacement at all due to license being under suspension or due to cancellation, the licensee may be advised to redress the complaint as per their mutual agreement.

11.5 For complaints regarding quality of food products, it may not always be possible to establish the complaint by the way of testing of complaint sample due to its limited shelf life. In such cases, licensee may be requested to provide redressal to the complainant by replacement as a "Gesture of Goodwill".

11.6 Complainant shall be requested to give a satisfaction letter for the redressal arranged. In case he is not willing to provide the same, a Registered AD letter/email/communication through portal shall be sent for intimating conformation of redressal and if no response is received within seven days from the date of communication, complaint shall be processed for closure.

11.7 The proposal for closure of complaint shall be put up to competent authority through the portal by the BO under whose jurisdiction the licensee is situated.

12. DATA ANALYTICS AND CORPORATE INVESTIGATIONS

12.1 In every 3 months, CMED should analyse the data on complaints as extracted from MCR and complaints portal and determine the trends of complaints such as increase in complaints received in a particular RO/BO for a particular product etc.

12.2 Based on these trends and in other special situations, DDG (PRT) in consultation with DDG (Certification) may direct for corporate investigations and depute officers from HQ for conducting investigations in that particular RO/BO.

13. TIME NORMS FOR COMPLAINT HANDLING

13.1 All actions from receipt of complaint to closure shall be completed within 90 days, excluding the testing time, where testing of product is involved. The timelines for dealing with complaints are attached as **Annex-1**.

13.2 Licensee end BO shall be responsible to get the complaint investigated at the end of complainant (if required) and to bring the complaint to a logical conclusion within specified time-norms.

13.3 DDGRs and concerned Activity Heads shall be responsible for adherence with these timelines by ROs/BOs/Depts.

Chapter IV

Annexures and Proformae

Annex-1
Timelines for Dealing with Product Quality Complaints on Standards Promotion Portal

Sl. No.	Action	RO/BO/Department responsible for action	Time-norms
1	Receipt of Complaint: a) Received through Portal/Mail/Letter etc. - Complaint acknowledgement, Scrutiny of complaint, seeking additional information (if required)/ uploading on Standards Promotion Portal and <u>forwarding</u> to concerned licensee end BO. b) Received at RO/BO/Dept. – Scrutiny of complaint, Complaint acknowledgement, seeking additional information (if required)/ <u>uploading</u> on Standards Promotion Portal. c) After complaint has been uploaded on the portal by the BO, action has to be taken as per a) above.	CMED RO/BO/Dept.# CMED	Within 3* working days of receipt Within 3* working days of receipt Within 3* working days of receipt * If additional information has been sought from the complainant, the complaint shall be forwarded within 7 working days of receipt
2	Forwarding the complaint for investigation at the end of complainant/dealer/seller/shop etc. (if required)	Licensee End BO	Within 3 working days of receipt of complaint from CMED
3	Investigation, submission of report and forwarding the complaint to Licensee end BO through portal.	BO at the end of complainant/dealer/seller /shop etc.	Within 7 working days of receipt of complaint from licensee end BO
4	Licensee end investigation and submission of report through portal	Licensee/manufacturer end BO	Within 7 working days of receipt of complaint from CMED or BO at the end of

Annex-1
Timelines for Dealing with Product Quality Complaints on Standards Promotion Portal

			complainant/dealer/seller/shop etc., as applicable
5	Redressal (if applicable)	Licensee/manufacture end BO	Within 15 days (excluding testing time) of submission of report of investigation by licensee/manufacture end BO.
6	Informing complainant about redressal/ action taken and obtaining satisfaction letter (as applicable)	Licensee/manufacture end BO	Within 7 days of providing redressal (if applicable). BO to try all efforts to obtain satisfaction letter.
7	Putting up recommendations and closure proposal to DDGRs	Licensee/manufacture end BO	Within 3 working days of obtaining letter of satisfaction. If reply is not received, complaint may be process without satisfaction letter with justification.
8	Decision on complaints and intimation to CMED	DDGRs/Concerned Activity Heads	Within 3 working days of receipt of proposal from BO

RO/BO/Dept. in these timelines refers to any department such as Branches, FMCD, MSCD and Registration Dept.

Note:

1. *The actions for closure of complaint shall be completed within ninety days, excluding the testing time, where testing of the product is involved.*
2. *Overall responsibility of bringing the complaint towards a logical conclusion shall lie with licensee end BO.*
3. *Concerned DDGRs and Activity Heads shall be responsible for the adherence with these timelines by the concerned RO/BO.*

Proforma I
BUREAU OF INDIAN STANDARDS
 (_____ Branch Office)

**REPORT OF INVESTIGATION OF PRODUCT QUALITY COMPLAINT AT
 COMPLAINANT END**

Our Ref:

Date:

Subject:

1. Complaint against M/s.....
2. Licensee under..... Branch Office

a. GENERAL

- i. Complaint No. & Date
- ii. Name & Address of Complainant:
- iii. Name & Address of recipient of material (if different from ii)
- iv. Product and IS No.
- v. Nature of Complaint (highlight specific shortcomings)
- vi. Licence No.

b. DETAILS OF INVESTIGATION

- i. Place & Date of Investigation
- ii. Persons contacted
- iii. Details of product
- iv. Date of purchase
- v. Total Quantity purchased
- vi. Quantity under complaint
- vii. Source of purchase and details of Bill / Cash Memo (copy of such document may be collected, if available)
- viii. Material under complaint Inspected/Repaired/Handled by any other agency e.g. DGS&D, Local Dealer/Mechanics
- ix. Is product under Warranty/ : Any service contract?
- x. Action taken by the licensee for redressal of the complaint (if any, till date)[Details of such communication shall be obtained]

- xi. Whether complainant seeks redressal in the form of repair or replacement of the product under complaint:

c. INSPECTION OF MATERIAL UNDER COMPLAINT

- i. Is material ISI Marked or not?
- ii. Whether ISI Mark Genuine or spurious
- iii. Details of Markings on the product
- iv. Condition of packing/storage
- v. Visual Examination
- vi. Observations in respect of a iii
- vii. Result of testing at complainant end, if done (attach sheet if necessary)

d. TESTING

- i. Whether sample drawn for independent testing,
- ii. If yes, details of sample drawn for independent testing,
- iii. Test request ref. & date
- iv. Laboratory to which sent
- v. Date on which despatched to Lab by self/complainant/BO
- vi. Any other information relevant to the complaint

3. CONCLUSIONS

4. RECOMMENDATIONS

Head of BO
cc: i) Licensee end BO
ii) CMED

Signature
Name of IO
Designation:
BO/Dept. :

Proforma II
BUREAU OF INDIAN STANDARDS
(_____ Branch Office)

**REPORT OF INVESTIGATION OF PRODUCT QUALITY COMPLAINT AT LICENSEE
END**

Our Ref:

Date:

Subject:

Complaint against M/s.....

1. GENERAL

- a. Complaint No.& Date
- b. Name and address of the Complainant
- c. Name and address of the recipient of material (if different from b)
- d. Product and IS No.
- e. Specific nature of complaint
- f. Licence No. & valid upto
- g. Is complainant end report available at the time of licensee end investigation?

2. DETAILS OF INVESTIGATION

- a. Date of Investigation
- b. Persons contacted
- c. Quantity under complaint
- d. Whether licensee is aware of the complaint
- e. If yes, actions taken for the same
- f. Licensee's opinion on the complaint
- g. Whether material was sold directly or through dealer, retailer etc.,
- h. Is product under warranty/ guarantee/service contract?
- i. Licensee's record (including testing) of the material under complaint
- j. Manner of marking adopted by licensee for the product under complaint
- k. Has the material been taken back by licensee ?
- l. If yes, observations on the same vis-a-vis specific nature of complaint
- m. Is the batch/lot/control unit under complaint held in stock by the licensee?

- n. Whether complaint sample drawn for independent testing from the batch under complaint, if yes, provide details of packing and sealing

(Need to be drawn only when sample for Independent testing could not be drawn at the complainant end)

- o. Any other observations

3. CONCLUSION

4. RECOMMENDATIONS

Signature
Name of IO :
Designation :
RO/BO/Dept.:

Head of BO/ Group Leader

cc: i) Complainant-end BO

ii) CMED

Proforma III
BUREAU OF INDIAN STANDARDS
 (_____ Branch Office)

REPORT OF INVESTIGATION OF COMPLAINT AT COMPLAINANT END
(FOR HALLMARKING RELATED COMPLAINTS)

1.	General	
i)	Name & address of the Complaint	
ii)	Name and address of the recipient of material if different from the complainant	
iii)	Nature of complaint (highlight the specific shortcomings) whether purity related or misuse of hallmarking	
iv)	In case, the complaint is against the centre, Name and address of the centre/	
v)	In case, the complaint is against the Jeweller, Name and address of the Jeweller	
vi)	Recognition number of AHC, in case the Centre is BIS recognised	
vii)	Registration number of Jeweller, in case the Jeweller is BIS registered	
viii)	Details of the complaint & complaint No. and date	
ix)	Details of previous complaint(s) if any	
2.	DETAILS OF INVESTIGATION	
i)	Place and Date of investigation	
ii)	Persons contacted	
iii)	Quantity/Material under complaint, if applicable	
iv)	Date of product, purchase, if applicable	
v)	Date of purchase	
vi)	Total quantity purchased	
vii)	Source of purchase and details of bill/ cash memo	
viii)	Whether AHC/ Jeweller is aware of the complaint, if yes, action taken for the same	
ix)	Is the material hallmarked	
x)	Whether the hallmark is genuine or spurious	
xi)	Details of markings on the product	
xii)	Observation of the Auditor	
xiii)	Details of sample drawn, if any, test request reference and date, lab sent, if applicable	
xiv)	Date on which despatched to lab by self/ complainant	
xv)	Any other observations relevant to the complaint	

4.	CONCLUSION (clearly mentioning whether complaint has been established or not):	
5.	RECOMMENDATIONS:	

Signature	
Name	
Designation	

Proforma IV
BUREAU OF INDIAN STANDARDS
 (_____ Branch/Regional Office)

**REPORT OF INVESTIGATION OF COMPLAINT AGAINST RECOGNISED A&H
CENTRE**

1.	General	
i)	Name & address of the Assaying and Hallmarking Centre	
ii)	BIS Recognition No., Validity Date & Scope of recognition	
iii)	Date of investigation	
iv)	Persons contacted	
v)	Details of the complaint	
vi)	Details of previous complaint(s) if any	
2.	DETAILS OF INVESTIGATION	
i)	Whether there is any change in management, premises, technical manpower or infrastructure without informing BIS	
ii)	Whether all test and marking equipment are in working condition and under valid calibration	
iii)	Whether security system, like CCTV are in operation. Check records of CCTV and verify receiving, delivery and assaying activities.	
iv)	Whether the articles accepted for assaying and hallmarking are only from BIS registered jewellers in the prescribed format.	
v)	Whether lot wise records of articles received from jewellers are available. Do they tally with records of assaying, hallmarking done and delivery (if complaint is against purity, check record of the particular article under investigation)	
vi)	Whether XRF testing, fire assay and laser marking are being done by competent personnel regularly. Check records.	

vii)	Whether following records are maintained on regular basis? ➤ Receipt/Collection Voucher ➤ Record of Jewellers, Respective Registration & Identification Marks ➤ XRF Card ➤ Stock Register of CRMs • Check Gold, Silver, Copper & Lead ➤ Assaying Report ➤ Assaying Sheet ➤ Test Certificate	
	➤ Marking Record Sheet (marked after July 2021 shall have HUID) ➤ Invoice cum Delivery Challan (hard copy of the records as per applicability based on four marking /HUID on the article to be verified)	
viii)	Whether records indicate traceability of individual lot with time of its receipt and delivery with Hallmark.	
ix)	Whether testing had been for precious metal which was beyond scope of recognition, without seeking formal inclusion of the precious metal in their scope of recognition.	
x)	Whether Hallmarking done for non-registered jeweller	
xi)	Whether sampling plan given in IS 15820 is followed and relevant records are available.	
xii)	Whether CRMs are used in assaying and corresponding receipt, consumption records of CRMs are available.	
xiii)	Whether proof assay cornets are available. Do they tally with lot wise assay record	
xiv)	Is marking done on all removable / detachable parts and the design & sequence of marking is followed.	
xv)	a) Verify HUID details marked on the article with that from Portal b) If article has four marks check the logo of A & H centre used in article are same as declared to BIS	
xvi)	Whether each activity completed and records available before proceeding to next activity.	

xvii)	Whether arrangement for uninterrupted power supply is available	
xviii)	Results of Testing witnessed if required	
xix)	Any other information specifically related to the complaint	
xx)	Whether any of the terms and conditions are found violated.	
xxi)	Deficiencies, if any, shall be communicated through Discrepancy/Variation Report	
3	Whether jeweller end investigation required, if yes, the action taken for the same	
4.	CONCLUSION (clearly mentioning whether complaint has been established or not):	
5.	RECOMMENDATIONS:	

Signature	
Name	
Designation	

Proforma V
BUREAU OF INDIAN STANDARDS
 (_____ Branch Office)

**REPORT OF INVESTIGATION OF COMPLAINT AGAINST REGISTERED
 JEWELLER**

1.	General	
i)	Name & address of the Jeweller	
ii)	BIS Registration No. & Validity Date	
iii)	Date of investigation	
iv)	Persons contacted	
v)	Details of the complaint (If the complaint is against purity of hallmarked article pl. indicate the availability of sales invoice with complainant, details of A&H centre who has hallmarked including its validity of recognition)	
vi)	Details of previous complaint(s) if any	
2.	DETAILS OF INVESTIGATION	
i)	Whether there is any change in management or premises without informing BIS	
ii)	Whether jewellery is HUID marked or with four marks	
iii)	In case of HUID verify HUID details In case of four marks check logo marked on jewellery from the logo of jeweller	
ii)	Whether jewellery sold with registration mark of the jeweler as declared to BIS	
iii)	Whether evidence of purchase available if jewellery sold with registration mark of the other jeweler or if hallmarked by other jeweller as per HUID	
iv)	Whether the jewellery sent for hallmarking to only recognized A&H centres.	

v)	Whether the articles sent for assaying and hallmarking in the prescribe format duly signed by authorized representative of the jeweller or through portal	
vi)	Whether bill or invoice of the hallmarked articles is as per guidelines	
vii)	Whether record of copies of request for hallmarking , invoice issued by A&H centre, invoice of articles sold, invoice of purchase of hallmarked article from jewelers available for a period of five years (particularly for the article under investigation)	
viii)	Whether the display requirements are followed	
ix)	Reasons attributed by the jeweller for the complaint	
x)	Details of Samples drawn if required	
xi)	Any other information specifically related to complaint	
xii)	Whether any of the terms and conditions violated.	
xiii)	Deficiencies, if any, shall be communicated through Discrepancy/Variation Report	
3	Whether A&H centre end investigation required, if yes, the action taken for the same	
4.	CONCLUSION (clearly mention whether complaint has been established or not):	
5.	RECOMMENDATIONS:	

Signature	
Name	
Designation	

Proforma VI
BUREAU OF INDIAN STANDARDS
 (_____ Branch Office)

**PROFORMA FOR CLOSURE OF COMPLAINTS ON QUALITY OF BIS CERTIFIED
 PRODUCTS**

Complaint Ref.:

Date:

1. Date of investigation
2. Name of Complainant
3. Licensee Complained against
4. CM/L No. & valid upto
5. Product & IS No.
6. Specific Nature of complaint
7. Quantity of material under Complaint
8. Findings of Investigations at Complainant's end
9. Test results of the complaint sample
10. Whether complaint established (by observation at complainant end and/or Independent TR)
11. Findings of Investigations at Licensee's end
12. Licensee's test record of the batch/lot under complaint
13. Performance during the proceeding one operative

a) Dates of Performance Factory Testing			
a) Dates of Inspection	Performance (Satis./Unsatis.)	Factory	Testing
Pass/Fail			
b) Independent Test Reports			
Factory Sample	Pass/Fail	Market	samples
Pass/fail			
c) Details of other complaints			
i) Closed			
ii) Pending			
14. Licensee's Overall performance

15. Actions taken against licensee such as stoppage of Marking
16. Verification of Corrective actions taken by licensee
17. Actions taken by the licensee for redressal of complaint
18. Whether redressal acknowledged by the complainant
19. Proposal of Dealing Officer

(Dealing Officer)

20. Recommendations (Head of the BO)
21. Orders of Activity Head (DDG)